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General Comment

In the development of large language models (LLMs) that generate text in response to a prompt, and the development of generative technologies that create images and other creative output in response to a prompt, all generally lumped under the category of "AI," the developers have admitted that they cannot create useful products without training them on copyrighted works that they have not been given permission to use. Eliminating the requirement to compensate the copyright owner for a for-profit use of their work undermines the entire US copyright system. It is not an "unnecessarily burdensome requirement" to require that a copyright holder be compensated when someone else uses their work for profit. That is what copyright means.

What's more, the product these companies are making using copyrighted work is in direct competition with the creators of the work they're stealing. The companies are creating a product that competes in the same space as the copyright holders, who will see their revenue suffer as a result. We have already seen the harm that AI-generated work can do in spaces such as Amazon's self-publishing, magazines that have been forced to shut down submissions because of AI-generated entries flooding their portals, and even Facebook's feed, crowded with AI-generated text that destroys the point of a social media feed.

An initiative such as this one prioritizes corporations--and the CEOs, as the people who profit the most--over the well-being of the American people. It would be a huge mistake to move forward with it.